

HOUSE No. 4955

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, January 28, 2026.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1299) of David Allen Robertson for legislation to increase enrollment in affordable health plan networks, reports recommending that the accompanying bill (House, No. 4955) ought to pass.

For the committee,

JAMES M. MURPHY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to increase enrollment in affordable health plan networks.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (a) of section 11 of chapter 176J of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by inserting at the end thereof the
3 following:-

4 The commissioner may also exempt carriers from complying with this section based on
5 (i) whether the majority of a carrier's chapter 176J membership is enrolled in a single rate
6 region; or (ii) whether the majority of the carrier's chapter 176J membership is enrolled in
7 subsidized coverage offered under chapter 176Q through which such members receive state or
8 federal subsidies; or (iii) whether the carrier receives 80 per cent or more of its income from
9 government programs, including subsidized coverage offered under chapter 176Q through which
10 such members receive state or federal subsidies.

11 SECTION 2. Section 9A of chapter 176O, as so appearing, is hereby amended by striking
12 out subsection (a) and inserting in place thereof the following subsection:-

13 "(a)(i) limits the ability of the carrier to introduce or modify a select network plan or
14 tiered network plan by granting the health care provider a guaranteed right of participation; (ii)
15 requires the carrier to place all members of a provider group, whether local practice groups or
16 facilities, in the same tier of a tiered network plan; or (iii) requires the carrier to include all
17 members of a provider group, whether local practice groups or facilities, in a select network plan
18 on an all-or-nothing basis; or"